

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KYLE ARIAS,

INDEX NO. 504312/2013

Plaintiff,

VERIFIED COMPLAINT

-against-

THE NEW YORK CITY POLICE DEPARTMENT, THE CITY
OF NEW YORK and POLICE OFFICERS "JOHN/JANE DOES"
(the names being fictitious, and who are employees of the New
York City Police Department who are not yet identified),,

Defendants.

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the
County of Kings, State of New York.
2. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK
(hereinafter "CITY") was and still is a domestic municipal corporation duly organized and
existing under and by virtue of the Laws of the State of New York.
3. At all times hereinafter mentioned, defendant, NEW YORK CITY POLICE
DEPARTMENT (hereinafter "NYPD") was and still is a domestic municipal agency duly
organized and existing under and by virtue of the Laws of the State of New York.
4. On or about July 29, 2012, the defendants POLICE OFFICERS "JOHN/JANE
DOES" were citizens of the United States and the State of New York and were employed by the
NYPD as police officers.
5. Upon information and belief, Officers "JOHN/JANE DOES" were assigned to
the 75th Precinct of the NYPD at the time of the occurrences alleged in this complaint. They

are being sued in both their individual and official capacities.

6. Notice of the plaintiff's claim and intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained, was duly served by said plaintiff upon the defendants, CITY and NYPD, on or about the 25th day of October, 2012 and within ninety (90) days of the causes of action herein accrued, all as required by the General Municipal Law, Section 50-e.

7. At least thirty (30) days have elapsed since the demand or claim upon which this action is founded was served upon the aforementioned defendants for adjustment and the defendants have neglected and/or refused to make an adjustment or payment thereon for said period of thirty (30) days after such presentation.

8. A statutory hearing was held on March 8, 2013.

9. Plaintiff has complied with all applicable Sections of the General Municipal Law which are conditions precedent to bringing this action against the defendants, CITY and NYPD.

10. This action has been commenced within one year after the cause of action of plaintiff accrued.

11. At all times hereinafter mentioned, the defendant NYPD was and is a department or agency of defendant, CITY that was and is responsible for the appointment, training, supervision, promotion and discipline of the police officers of the NYPD, including the individually named defendants herein.

12. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

13. At all times hereinafter mentioned, the defendants, CITY and NYPD, employed

the warrant officers, police officers, jailers, wardens, magistrates, court attendants, clerks, district attorney and his assistants, drivers, and others hereinafter mentioned in this complaint.

14. Upon information and belief, the defendants, CITY and NYPD, owned the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

15. Upon information and belief, the defendants, CITY and NYPD, maintained the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

16. Upon information and belief, the defendants, CITY and NYPD, controlled the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KYLE ARIAS

17. On July 29, 2012, the plaintiff KYLE ARIAS was lawfully on the premises of a convenience store located on Glenmore Avenue, near Crescent Street, Brooklyn, New York.

18. On July 29, 2012 at the aforementioned location, the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants herein.

19. On July 29, 2012, at the aforementioned location, the plaintiff was beat up by multiple members of the NYPD, including the individually named defendants herein.

20. On July 29, 2012, the plaintiff, KYLE ARIAS was punched and hit in and about his face and body, forcibly detained and handcuffed.

21. Based upon information and belief, the officers, including the individually named defendants herein, possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

22. On July 29, 2012, plaintiff KYLE ARIAS was caused to suffer severe personal injuries.

23. At all relevant times and in all their actions described herein, the defendants, including the individually named defendants herein, were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

24. At all relevant times, the defendant, CITY was responsible for the actions of its police officers, and more particularly, defendants OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

25. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff KYLE ARIAS.

26. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered physical assault and battery, and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

27. Due to the foregoing, plaintiff KYLE ARIAS is entitled to damages

AS AND FOR A SECOND CAUSE OF ACTION

ON BEHALF OF PLAINTIFF KYLE ARIAS

28. Plaintiff KYLE ARIAS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 26, inclusively with the same force and effect as if set for the fully and at length set forth herein.

29. As a result of the aforementioned actions of members of the NYPD, including the individually named defendants herein, plaintiff KYLE ARIAS was placed in apprehension of imminent or offensive contact and was concerned that the defendants were about to cause an offensive or harmful bodily contact.

30. Due to the foregoing, plaintiff KYLE ARIAS is entitled to damages

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KYLE ARIAS

31. Plaintiff KYLE ARIAS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 29, inclusively with the same force and effect as if set for the fully and at length set forth herein.

32. Plaintiff was arrested, held in custody, restrained of his liberty and forced to spend days and weeks incarcerated.

33. This arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

34. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

35. Defendants, their agents, servants and/or employees wrongfully caused plaintiff

to be arrested, jailed and charged with a crime.

36. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of his liberty caused him great humiliation and as a result of which he has been damaged.

37. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

38. The charges against plaintiff were wholly dismissed.

39. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; his reputation and character were injured; his earning power permanently impaired.

40. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KYLE ARIAS

41. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 39, inclusively with the same force and effect as if set forth fully and at length set forth herein.

42. Such conduct breached the protections provided by the New York State Constitution Article I, §§ 6, 11, and 12.

43. As a result of all foregoing conduct and acts of the defendants with respect to the arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care. He also suffered serious reputational and economic injuries.

44. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
 - b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
 - c. To be free from malicious prosecution by police officers acting under color of law;
 - d. To be free from abuse of process by police officers acting under color of law;
 - e. To be entitled to the free exercise of due process without wrongful restraint by police officers acting under color of law;
 - f. To be free of unreasonable seizure by police officers acting under color of law;
 - g. To not have excessive force used against him by police officers acting under color of law; and
 - h. To not have summary punishment imposed upon him by police officers acting under color of law.
45. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KYLE ARIAS

46. Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 44, inclusively with the same force and effect as if fully and at length set forth herein.

47. Defendants were further negligent in failing to exercise the care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar circumstances.

48. That these defendants were further negligent in that the CITY and NYPD were negligent in the training and instruction of its police and corrections officers by not exercising care in instructing them as to their department, proper police procedure, behavior and conduct as police officers and representatives of the CITY.

49. At all times relevant herein, the acts complained of herein are the direct and proximate result of the failure of the CITY and NYPD to properly select, train, supervise and discipline its employees and servants, and in particular the individual defendants in accordance with the statutes, ordinances, regulations, customs and usages of the defendant CITY and of the State of New York and of the United States of America. Defendant CITY is liable for any torts or liability of the NYPD, its police officers, and its agents and employees under a municipal custom or policy.

50. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from his usual vocation, avocation and activities and upon information and belief will in the future be disabled from his following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

51. All defendants named herein are derivatively liable for the acts of each other.

52. This action comes within one or more of the exceptions set forth in CPLR 1602.

53. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SIXTH CAUSE OF ACTION

ON BEHALF OF PLAINTIFF KYLE ARIAS

54. Plaintiff KYLE ARIAS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 52, inclusively with the same force and effect as if fully and at length set forth herein.

55. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

56. At all relevant times, the defendant, CITY was responsible for the training of its police officers, and more particularly, defendants OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

57. At all relevant times, the defendant, CITY was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD, including the individually named defendants herein.

58. At all times mentioned herein, the defendant CITY knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff KYLE ARIAS.

59. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled,

suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from his usual vocation, avocation and activities and upon information and belief will in the future be disabled from his following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

60. All defendants named herein are derivatively liable for the acts of each other.

61. This action comes within one or more of the exceptions set forth in CPLR 1602.

62. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KYLE ARIAS

63. Plaintiff KYLE ARIAS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 61, inclusively with the same force and effect as if fully and at length set forth herein.

64. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

65. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

66. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

67. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

68. As a result of the conduct of Defendants, Plaintiff suffered serious physical injury causing Plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused

diminution in the quality of Plaintiff's life.

69. As a result of the conduct of Defendants, Plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of his privacy and liberty, has been adversely affected in his employment and in his ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for his physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

70. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

71. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KYLE ARIAS

72. Plaintiff KYLE ARIAS repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 70, inclusively with the same force and effect as if fully and at length set forth herein.

73. At all times relevant herein, the aforesaid acts undertaken by the defendants and complained of by plaintiff were so outrageous as to shock the conscience of the court.

74. As a result of the foregoing, plaintiffs suffered serious permanent emotional, mental, physical, reputational and economic injuries.

75. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, the plaintiff demands:

a. judgment awarding damages on the FIRST CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

b. judgment awarding damages on the SECOND CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

c. judgment awarding damages on the THIRD CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

d. judgment awarding damages on the FOURTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

e. judgment awarding damages on the FIFTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

f. judgment awarding damages on the SIXTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

g. judgment awarding damages on the SEVENTH CAUSE OF ACTION, in an

amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

h. judgment awarding damages on the EIGHTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;.....

i. interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: New York, New York
July 29, 2013



By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Suite 1200
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO. 504312/2013

KYLE ARIAS,

Plaintiff,

**ATTORNEY'S
VERIFICATION**

-against-

THE NEW YORK CITY POLICE DEPARTMENT, THE CITY
OF NEW YORK and POLICE OFFICERS "JOHN/JANE DOES"
(the names being fictitious, and who are employees of the New
York City Police Department who are not yet identified),

Defendants.

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's
knowledge are correspondence had with the said plaintiff, information contained in the said
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
July 29, 2013


ROBERTA D. ASHER

INDEX NO. 504312/2013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KYLE ARIAS,

Plaintiff,

-against-

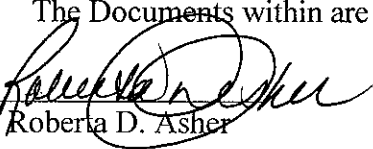
THE NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK and
POLICE OFFICERS "JOHN/JANE DOES" (the names being fictitious, and who are
employees of the New York City Police Department who are not yet identified),

Defendants.

VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By:


Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Suite 1200

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk of
the

within named Court on , 2013.

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of the
of the within named Court, at , New York, on , 2013, at 9:30 A.M.

Dated: